

LATEST LEGAL NEWS

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Latest Legal News:

- Latest legal news provides factual updates on recent events, rulings, legislative changes, or other developments in the legal field.
- It is typically reported by news agencies or legal publications and aims to deliver timely and accurate information to readers.
- The content is often concise, objective, and focuses on reporting what has happened without much analysis or interpretation.
- Legal news helps professionals and the general public stay informed about significant legal developments that may impact various aspects of society.

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LATEST LEGAL NEWS**1. HEADING OUTLINE**

MP High Court issues notice to Kareena Kapoor Khan for use of word 'bible' in her pregnancy book's title.

CRUX OF THE CASE

MP HIGH COURT ISSUES NOTICE TO KAREENA KAPOOR KHAN FOR USE OF WORD 'BIBLE' IN HER PREGNANCY BOOK'S TITLE.

Published on 12 May 2024 – By Adv. Himanshu Adhikari

Aspect	Details
Case Title	Christopher Anthony v. Kareena Kapoor Khan
Case Number	MCRC No. 36902 of 2022
Court	Madhya Pradesh High Court
Petition Date	2022
Order Date	09-05-2024
Allegation	Advocate petitioned against Kareena Kapoor Khan and others for naming her pregnancy book "Kareena Kapoor Khan's Pregnancy Bible."
Issue	Alleged offense: Use of the term "bible" in the title, purportedly offending Christian religious sentiments.
Court Action	Notices issued to respondents, including Kareena Kapoor Khan, seeking an explanation for the use of the term "bible" in the title.
Further Proceedings	Anticipated after the court's vacations in July.

CHRISTOPHER ANTHONY V. KAREENA KAPOOR KHAN, MCRC NO. 36902 OF 2022, ORDER DATED 09-05-2024 - In a petition filed in 2022 before the Madhya Pradesh High Court, an advocate sought the registration of a case against actor Kareena Kapoor Khan and others for naming her book on pregnancy "Kareena Kapoor Khan's Pregnancy Bible." The advocate alleged that the use of the word "bible" in the title offended religious sentiments, particularly of Christians. The court issued notices to the respondents, including Kareena Kapoor Khan, seeking an explanation for the use of the word "bible" in the title. Further proceedings are expected after the court's vacations in July.

2. HEADING OUTLINE

Certificate Under Section 65b Can Be Submitted Later, Ensuring Fairness In Trial Proceedings, And Sends The Case Back To The Trial Court- Delhi High Court

CRUX OF THE CASE

CERTIFICATE UNDER SECTION 65B CAN BE SUBMITTED LATER, ENSURING FAIRNESS IN TRIAL PROCEEDINGS, AND SENDS THE CASE BACK TO THE TRIAL COURT- DELHI HIGH COURT

Published on 12 May 2024 – By Adv. Himanshu Adhikari

Aspect	Details
Case Title	State (NCT) of Delhi v. Karan Singh Yadav
Case Number	Crl. Rev. P. 571 of 2015
Court	Delhi High Court
Date of Decision	06.05.2024
Background	A criminal revision petition was filed by the State against the Trial Court's order discharging all accused under the Prevention of Corruption Act due to inadmissible evidence.
	Evidence from a sting operation by Aaj Tak showing officials accepting bribes was deemed inadmissible due to lack of certification under Section 65-B of the Evidence Act.
Analysis and Decision	Delhi High Court emphasized the necessity of a Section 65-B certificate for electronic evidence admissibility.
	Court clarified that certificate can be filed later, ensuring a fair trial without prejudice to accused.
	The Court highlighted discretionary power of Trial Court to accept certificate later, maintaining fairness.
	Admissibility of certificate filed subsequently with supplementary charge sheet was established.
	Court dissected Section 65-B, stating absence of specific date on certificate doesn't contravene its requisites.
	Issuance of certificate not restricted to specific individual, but any responsible official.
	Remanded matter back to Trial Court to frame fresh charges.
	Directive issued for both parties to appear before Special Judge for further proceedings.

STATE (NCT) OF DELHI V. KARAN SINGH YADAV, CRL. REV. P. 571 OF 2015, DECIDED ON 06.05.2024]- The Delhi High Court addressed the issue of admissibility of electronic

evidence in a criminal trial. The trial court had discharged all accused persons due to inadmissibility of evidence from a sting operation conducted by news channel Aaj Tak, as it lacked the necessary certification under Section 65-B of the Evidence Act, 1872. However, the High Court ruled that the certificate under Section 65-B could be filed subsequently with a supplementary charge sheet, ensuring a fair trial without causing irreversible prejudice to the accused. The Court emphasized the importance of the certificate in validating electronic records as admissible evidence and clarified that its presentation could occur at any stage before the commencement of trial proceedings. It also addressed technicalities regarding the certificate's issuance and validity. Consequently, the matter was remanded back to the Trial Court for framing fresh charges in accordance with the law, with both parties instructed to appear before the Special Judge for further proceedings.

"In criminal trials certificate in terms of Section 65-B of the Act is to be filed before commencement of the trial. However, the Trial Court, in its discretion, after examining any application by the prosecution under Sections 91 or 311 CrPC or Section 165 of the Evidence, may permit production of such certificate at any stage of the trial if no irreversible prejudice is caused to the accused."

3. HEADING OUTLINE

Supreme Court Disposes Of Hemant Soren's Plea Complaining Against Delay By Hc In Deciding His Arrest By Ed In Land Scam Case

CRUX OF THE CASE

SUPREME COURT DISPOSES OF HEMANT SOREN'S PLEA COMPLAINING AGAINST DELAY BY HC IN DECIDING HIS ARREST BY ED IN LAND SCAM CASE

Published on 12 May 2024 – By Adv. Himanshu Adhikari

Aspect	Details
Case Title	Hemant Soren vs. Directorate of Enforcement ('ED')
Court	Supreme Court
Date of Decision	Not specified
Judges	Division Bench of Sanjiv Khanna and Dipankar Datta, JJ.
Background	Hemant Soren challenged his arrest in a land scam case where he was accused of being the primary beneficiary of fraudulently acquired land.
	High Court delayed judgment despite concluding arguments on February 29.
Decision	Petition deemed 'infructuous' as High Court delivered verdict.
	High Court refused bail to Hemant Soren on 03-05-2024.
Subsequent Petition	Hemant Soren granted liberty to raise contentions in a second petition, scheduled for next week.
Second Petition	Special Leave Petition challenging Jharkhand High Court's order listed on 13-05-2024 before the same Bench.

Former Jharkhand Chief Minister Hemant Soren filed a special leave petition challenging his arrest by the Directorate of Enforcement (ED), due to delay in Jharkhand High Court's judgment despite concluding arguments on February 29. However, the Supreme Court bench of Sanjiv Khanna and Dipankar Datta, JJ. found the petition 'infructuous' as the High Court had already delivered the verdict. Hemant Soren, arrested in a land scam case, was accused of being the primary beneficiary of fraudulently acquired land. The High Court denied him bail on 03-05-2024. The Bench allowed Hemant Soren to raise all contentions in a second petition scheduled for the following week. The Special Leave Petition challenging the Jharkhand High Court's order is now listed for 13-05-2024, before the same Bench.

4. HEADING OUTLINE

Supreme Court Halts NGT's Move To Trigger PMLA Action, Asserts Lack Of Jurisdiction At First Glance

CRUX OF THE CASE

SUPREME COURT HALTS NGT'S MOVE TO TRIGGER PMLA ACTION, ASSERTS LACK OF JURISDICTION AT FIRST GLANCE

Published on 12 May 2024 – By Adv. Himanshu Adhikari

Aspect	Details
Case Title	Waris chemicals pvt. Ltd. V. Uttar pradesh pollution control board
Date	May 10, 2024
Court	Supreme Court
Summary	The Supreme Court stayed the direction of the NGT to initiate action under the PMLA against the appellant company for dumping hazardous waste, citing lack of jurisdiction. It also stayed the order to pay environmental compensation of Rs. 25,39,68,750/-. Justices AS Oka and Ujjal Bhuyan issued notice to challenge against NGT directions.
NGT Order	UPPCB issued an order imposing environmental compensation of Rs. 46,67,80,837 for allegedly dumping hazardous waste containing chromium. Appellant challenged the order before NGT. NGT considered appellant's liability under Water Act 1974, Air Act 1981, and Hazardous Waste (Management & Handling) Rules, 1989. NGT noted PMLA covers offences under environmental norms and initiated legal action under PMLA.
NGT Directive	Appellants directed to pay environmental compensation of Rs. 25,39,68,750 within three months, failing which recovery proceedings will be initiated.
Next Hearing	Matter scheduled for hearing in Apex Court on August 5.

The Supreme Court, in the case of **WARIS CHEMICALS PVT. LTD. v. UTTAR PRADESH POLLUTION CONTROL BOARD**, stayed the National Green Tribunal's direction to initiate action under the PMLA against the appellant company for dumping hazardous waste. The Court held that NGT lacked jurisdiction for such direction and stayed the order to pay environmental compensation of Rs. 25,39,68,750/-. The NGT had initiated legal action under PMLA, considering the appellant's violations of environmental norms. The matter is scheduled for further hearing in the Apex Court on August 5.

5. HEADING OUTLINE

Delhi Riots Case Defendant Salim Malik Withdraws Bail Application Following Supreme Court's Reservation

CRUX OF THE CASE

DELHI RIOTS CASE DEFENDANT SALIM MALIK WITHDRAWS BAIL APPLICATION FOLLOWING SUPREME COURT'S RESERVATION

Published on 12 May 2024 – By Adv. Himanshu Adhikari

Aspect	Details
Case Title	Salim Malik @ Munna vs State of National Capital Territory of Delhi
Date	May 10, 2024
Court	Supreme Court
Decision	Allowed the accused to withdraw bail petition
Bench	Justices Bela Trivedi and Pankaj Mithal
Petitioner	Salim Malik
Lawyer	Senior Advocate Salman Khurshid
Reason for Withdrawal	Supreme Court expressed reservations about entertaining the matter
Previous Ruling by Delhi High Court	Denied bail to Malik
High Court Judges	Justice Suresh Kumar Kait and Justice Manoj Jain
Reasons for Denial of Bail by High Court	Material on record indicated Malik's involvement as a co-conspirator
Charges Against Malik	UAPA case over alleged larger conspiracy behind the 2020 Delhi riots

In the case titled **SALIM MALIK @ MUNNA VS STATE OF NATIONAL CAPITAL TERRITORY OF DELHI**, the Supreme Court on May 10, 2024, permitted Salim Malik, an accused in a UAPA case related to the alleged larger conspiracy behind the 2020 Delhi riots, to withdraw his bail petition. Justices Bela Trivedi and Pankaj Mithal, after expressing reservations about entertaining the matter, granted permission for withdrawal following arguments presented by Senior Advocate Salman Khurshid, Malik's lawyer. The petition challenged the Delhi High Court's April 2024 judgment denying bail to Malik, who has been in custody since June 2020. The High Court observed substantial evidence indicating Malik's involvement as a co-conspirator in the offense he was charged with.

6. HEADING OUTLINE

Supreme Court Rules: Challenge Preliminary Assessment Orders Under JJ Act In Children's Court, Not Sessions Court

CRUX OF THE CASE

SUPREME COURT RULES: CHALLENGE PRELIMINARY ASSESSMENT ORDERS UNDER JJ ACT IN CHILDREN'S COURT, NOT SESSIONS COURT

Published on 12 May 2024 – By Adv. Himanshu Adhikari

Aspect	Details
Case Title	Child In Conflict With Law Through His Mother Versus The State Of Karnataka And Another
Citation	2024 LiveLaw (SC) 353
Summary	The Supreme Court ruled that appeals against preliminary assessment orders of the Juvenile Justice Board (JJB) under Section 101(2) of the JJ Act, 2015 should be filed before the 'Children's Court' if available, even if a Sessions Court exists. The Court interpreted the Act and Juvenile Justice Model Rules, stating that where the Children's Court is available, it must be preferred over the Sessions Court for such appeals. However, if no Children's Court exists, the Sessions Court would have jurisdiction.
Observations by the Bench	The bench, comprising Justices CT Ravikumar and Rajesh Bindal, emphasized that the term 'Children's Court' and 'Sessions Court' should be considered interchangeably. It explained that when the Children's Court exists, appeals should be heard there, regardless of the Sessions Court's jurisdiction. Conversely, if there's no Children's Court, the Sessions Court can handle the appeal.
Interpretation of Section 101(2) of JJ Act	Section 101(2) allows appeals against orders passed by the Board after preliminary assessment under Section 15 of the Act to be filed before the Court of Sessions. The term 'Children's Court' isn't explicitly mentioned.
Definition of 'Children's Court'	The Act defines 'Children's Court' in Section 2(20) as a court established under the 2005 Act or a Special Court established under the 2012 Act. If such courts don't exist, the Court of Sessions has jurisdiction. The court equated the Presiding Officer of the Children's Court with that of the Court of Sessions, including Additional Sessions Judges.

In the case of **CHILD IN CONFLICT WITH LAW THROUGH HIS MOTHER VERSUS THE STATE OF KARNATAKA AND ANOTHER (2024 LiveLaw (SC) 353)**, the Supreme Court clarified the jurisdiction for appeals against preliminary assessment orders of the Juvenile Justice Board (JJB) under Section 101(2) of the JJ Act, 2015. It held that such appeals should

be filed before the 'Children's Court' if available, even if a Sessions Court exists. Justices CT Ravikumar and Rajesh Bindal emphasized the interchangeability of 'Children's Court' and 'Sessions Court'. They ruled that where the Children's Court exists, appeals must be heard there, irrespective of the Sessions Court's jurisdiction. However, if no Children's Court exists, the Sessions Court can handle the appeal. The court interpreted Section 101(2) of the JJ Act and noted that the term 'Children's Court' is not explicitly mentioned, but it encompasses courts established under the 2005 Act or a Special Court established under the 2012 Act. If such courts do not exist, the Court of Sessions has jurisdiction. The court clarified that the Presiding Officer of the Children's Court and the Court of Sessions are equated, including Additional Sessions Judges.

7. HEADING OUTLINE

Supreme Court Says: Order 41 Rule 31 CPC - If Appeals Court Discusses Issues, Separate Framing Not Necessary

CRUX OF THE CASE

SUPREME COURT SAYS: ORDER 41 RULE 31 CPC - IF APPEALS COURT DISCUSSES ISSUES, SEPARATE FRAMING NOT NECESSARY

Published on 13 May 2024 – By Adv. Himanshu Adhikari

Aspect	Details
Case Title	Mrugendra Indravadan Mehta and Others v. Ahmedabad Municipal Corporation
Citation	2024 LiveLaw (SC) 369
Key Holding	Supreme Court ruled that if the first appellate court addresses all issues in an appeal, it's not fatal if it didn't separately frame points for determination as required by Order 41 Rule 31 of CPC.
Bench	Justices AS Bopanna and Sanjay Kumar
Main Ruling	The omission to frame points of determination by the first appellate court doesn't matter as long as it deals with all the issues raised in the appeal.
Compliance with Order 41 Rule 31 of CPC	Substantial compliance with Order 41 Rule 31, which mandates framing points of determination, is sufficient if all issues are addressed.
Relevant Rule	Order 41 Rule 31 of CPC requires the judgment of the first appellate court to state the points for determination, decision thereon, reasons, and relief sought by the appellant.
Appellant's Contention	The appellant argued that the first appellate court didn't frame points for determination in an appeal from the original decree.
Court's Observations	The court noted that the first appellate court considered all issues framed by the trial court and didn't omit any relevant point in its judgment.
Precedent	The judgment relied on Laliteshwar Prasad Singh and others v. S.P. Srivastava, stating that the mere omission to frame points for determination doesn't invalidate the judgment if reasons are provided based on evidence.
Decision	The Supreme Court upheld the High Court's decision to allow the first appeal filed by the respondent.

In the case titled **MRUGENDRA INDRAVADAN MEHTA AND OTHERS V. AHMEDABAD MUNICIPAL CORPORATION**, the Supreme Court ruled that if a first appellate court fails to separately frame points of determination as required by Order 41 Rule 31 of the Code

of Civil Procedure (CPC), it's not a big issue as long as the court addresses all the important matters raised in the appeal.

The bench, consisting of Justices AS Bopanna and Sanjay Kumar, emphasized that as long as the first appellate court properly handles all the issues raised by both parties in the appeal, the lack of separate framing of points won't invalidate its judgment. Order 41 of the CPC deals with appeals from original decrees, and Rule 31 specifies that the judgment of the first appellate court must include the points to be decided, the decision on those points, the reasons for the decision, and any relief granted to the appellant if the decree is reversed or changed.

In this case, the appellant argued that the first appellate court didn't frame the points for determination against the appeal from the original decree issued by the trial court. However, the Supreme Court disagreed, citing a previous judgment, **Laliteshwar Prasad Singh and Others v. S.P. Srivastava (Dead) thru. Lrs**, which stated that the omission to frame points wouldn't affect the judgment as long as the court provided reasons based on the evidence presented by both sides.

The Supreme Court noted that the High Court, in this instance, considered all the issues framed by the trial court and didn't overlook any important matters. Therefore, it upheld the High Court's decision to allow the respondent's first appeal.

8. HEADING OUTLINE

Bombay HC Permits Doctor To Keep MBBS Seat Acquired With False OBC Certificate, Cites Cancellation Will Be National Loss

CRUX OF THE CASE

BOMBAY HC PERMITS DOCTOR TO KEEP MBBS SEAT ACQUIRED WITH FALSE OBC CERTIFICATE, CITES CANCELLATION WILL BE NATIONAL LOSS

Published on 13 May 2024 – By Adv. Himanshu Adhikari

Aspect	Summary
Case Title	Lubna Shoukat Mujawar v. State of Maharashtra and Ors. Case no. – Writ Petition No. 132 of 2017
Court	Bombay High Court
Decision	MBBS admission of a doctor, acquired under OBC-Non-Creamy Layer Certificate with false information, not revoked.
Ruling	Cancelling admission would cause national loss due to doctor's qualification.
Judgment	The first appellate court's omission to frame points of determination not fatal if it addresses all issues in appeal.
Justices	Justice AS Chandurkar and Justice Jitendra Jain
Outcome	Non-Creamy Layer Certificate cancelled, admission reclassified to Open Category. Doctor directed to pay fee difference and Rs. 50,000 penalty for false representation.
Background	Petitioner enrolled in MBBS course under OBC category based on OBC-NCL Certificate. Inquiry found discrepancies in father's statements regarding marital status and income. Certificate cancelled, admission revoked.
Petitioner's Argument	Completion of MBBS course, internship, and Diploma Course in Obstetrics and Gynecology highlighted. Father's misrepresentation attributed to belief that divorce exempted wife's income. Father's income alone deemed below limit for Certificate. Challenge to Certificate and admission cancellation.
Court's Analysis	Father's application for NCL Certificate misrepresented wife's employment status, contradicting evidence found. Both parents' incomes considered for NCL Certificate. Misinformation attempted to avoid exceeding income limit. Father's claim of divorce contradicted by evidence. False information not acceptable for foundation of medical profession.
Court's Decision	Admission completion acknowledged under interim court orders. Unfair means of admission recognized, directed college to confer degree under Open Category

The Bombay High Court in the case of **LUBNA SHOUKAT MUJAWAR V. STATE OF MAHARASHTRA AND ORS.** refused to revoke the MBBS admission of a doctor, obtained under a false OBC-Non-Creamy Layer Certificate. While acknowledging the completion of the MBBS course and the national need for doctors, the court cancelled the Certificate, reclassified the admission to the Open Category, and imposed a penalty of Rs. 50,000 for false representation. The petitioner's father misrepresented marital status and income to obtain the certificate, leading to its cancellation. Despite completing the course, the admission was reclassified due to the foundation of false information, emphasizing the integrity of the medical profession.

9. HEADING OUTLINE

Supreme Court Urges Compliance On Preventing Unnecessary Arrests & Remands From HCs, Centre, And States/UTs

CRUX OF THE CASE

SUPREME COURT URGES COMPLIANCE ON PREVENTING UNNECESSARY ARRESTS & REMANDS FROM HC'S, CENTRE, AND STATE'S/UT'S

Published on 13 May 2024 – By Adv. Himanshu Adhikari

Aspect	Details
Case	Satender Kumar Antil v. Central Bureau of Investigation
Citation	2024 LiveLaw (SC) 151
Date of Hearing	May 07, 2024
Direction by the Court	Given last chance to HCs, States, and UTs to comply with directions for including decisions from Siddharth v. State of UP and Satender Kumar Antil in the judicial academy's curriculum.
Key Directions	- Investigating officers need not arrest every accused at the time of filing the chargesheet. - Trial courts should not insist on arrest as a prerequisite for taking the chargesheet on record. - High Courts to identify undertrial prisoners unable to meet bail conditions and facilitate their release under Section 440 of the Code.
Previous Orders	Court previously ordered inclusion of landmark decisions in judicial academies' curriculum. Directed High Courts to report if decisions have been included, and States to ensure prosecutors state correct legal positions.
Current Displeasure	Court expresses displeasure at non-compliance, terms situation "unfortunate". Warns of consequences if compliance is not reported by next hearing.
Deadline for Compliance	Non-complying parties given time until June 30, 2024, to file compliance affidavits.
Facilitation for Compliance	Parties facilitated to discuss with the Amicus through video conferencing. Scheduled discussions on July 15, 18, and 19, 2024.
Communication	Parties instructed to use complianceinantil@gmail.com for communication.
Next Hearing Date	Matter scheduled for August 6 at 2 PM.

In **SATENDER KUMAR ANTIL V. CENTRAL BUREAU OF INVESTIGATION**, the Supreme Court granted one last opportunity to High Courts, States, and Union Territories to report compliance with directions to include landmark decisions in the judicial academy's

curriculum. These directions aimed to prevent unnecessary arrest and remand. The Court expressed displeasure at non-compliance despite earlier orders and deferred adverse action pending next hearing. Non-complying parties given until June 30, 2024, to file compliance affidavits. Video conferencing facilitated for discussion with the Amicus to ensure compliance. Next hearing scheduled for August 6 at 2 PM.

10. Dr. S. Jaishankar, speaking at the launch of the Arbitration Bar Of India

DR. S. JAISHANKAR, SPEAKING AT THE LAUNCH OF THE ARBITRATION BAR OF INDIA (ABI), HIGHLIGHTED HOW THE ESTABLISHMENT OF SUCH A BAR ALIGNS WITH INDIA'S VISION TO BECOME A LEADING DESTINATION FOR ARBITRATION.

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INAUGURATION HIGHLIGHTS

The official inauguration of the Arbitration Bar of India (ABI) on May 11, 2024, marked a significant milestone in India's legal landscape. Dr. S. Jaishankar, along with other dignitaries, emphasized the importance of arbitration in attracting foreign investment and positioning India as a premier arbitration destination. ABI aims to foster excellence, ethics, and diversity in arbitration practice, representing a transformative shift in India's dispute resolution landscape. With legislative reforms and digital initiatives complementing its establishment, ABI is poised to shape the future of arbitration in India, driving professionalism, inclusivity, and policy advocacy.

BENEFITS FOR THE COUNTRY

Benefits for the Country	Detailed Explanation
1. Attracting Foreign Direct Investment (FDI)	Dr. S. Jaishankar emphasized the importance of high-quality arbitration in attracting FDI to India. By promoting professionalism and specialization in arbitration practice through ABI, India becomes a more attractive destination for foreign investors seeking reliable dispute resolution mechanisms.
2. Enhanced Efficiency and Efficacy of Dispute Resolution	ABI President Gourab Banerji emphasized the transformative potential of ABI in improving the efficiency and efficacy of the dispute resolution process. By fostering excellence and ethics in arbitration practice, ABI contributes to faster and fairer resolution of disputes, boosting investor confidence and business certainty.
3. Government Proactivity in Legislative Reforms	Solicitor General Tushar Mehta highlighted the proactive stance of the Government of India in enacting legislative amendments and reforms to strengthen arbitration in the country. These reforms create a more conducive legal framework for arbitration proceedings, enhancing India's appeal as an arbitration destination.
4. Institutionalization of Arbitration	Attorney General for India R Venkataramani stressed the significance of ABI in institutionalizing arbitration in India. By establishing a dedicated bar for arbitration practitioners, ABI contributes to the formalization and standardization of arbitration practice, elevating the status of arbitration as a preferred method of dispute resolution in the country.

Benefits for the Country	Detailed Explanation
5. Promotion of Diversity and Inclusivity	Mr. Venkataramani underscored the importance of diversity at ABI, emphasizing inclusivity and equal participation of all genders. By promoting diversity and inclusivity within the arbitration profession, ABI fosters a more vibrant and representative legal ecosystem, ensuring fair representation and opportunities for all practitioners.
6. Digital Innovation	Minister Ashwini Vaishnaw highlighted the digital dimension of ABI, emphasizing the importance of leveraging digital technology to complement the bar's digital birth. By embracing digital innovation, ABI enhances accessibility, efficiency, and transparency in arbitration proceedings, aligning with India's broader digitalization efforts and facilitating smoother dispute resolution processes.
7. Positioning India as a Premier Arbitration Destination	Dr. S. Jaishankar reaffirmed the government's commitment to positioning India as a premier arbitration destination. By promoting arbitration as a cornerstone of modern dispute resolution and integrating it into initiatives like Make in India, India strengthens its reputation as a reliable and preferred seat for international arbitration, attracting both domestic and international stakeholders.
8. Global Recognition and Growth	Tejas Karia expressed optimism about India's ambition to become a preferred seat for international arbitration with the establishment of ABI. By playing a pivotal role in ensuring India's growth as an international arbitration hub, ABI contributes to India's global recognition and influence in the field of dispute resolution.

CHALLENGES

Challenges	Detailed Explanation
Exclusivity Concerns	Despite the emphasis on diversity, there may still be challenges in ensuring equal opportunities for practitioners from all backgrounds.
Digital Challenges	While the ABI is born digital, there may be challenges in integrating digital technology effectively into arbitration processes, particularly in remote areas.
Regulatory Hurdles	Legislative reforms are crucial, but navigating through regulatory hurdles and ensuring their effective implementation may pose significant challenges.
Resistance to Institutionalization	Despite the importance of institutionalizing arbitration, there may be resistance from traditional practices and a lack of awareness about the benefits.

Challenges	Detailed Explanation
Skill Development and Training	Enhancing professionalism requires continuous skill development and training, which may face challenges in terms of access and resources.

OPINION OF THE PUBLISHER

Although the inauguration of the Arbitration Bar of India (ABI) marks a significant milestone in India's legal landscape, there are certain areas that warrant consideration for further development in the country.

1. Lack of Concrete Action Plans: The information highlights the speeches and visions of various dignitaries regarding the ABI's role in shaping India's arbitration landscape. However, there is a lack of concrete action plans or strategies mentioned to address the challenges and capitalize on the opportunities. Without clear plans for implementation, the ABI's potential impact may remain theoretical.

2. Gender Inclusivity: While there is mention of the importance of diversity and inclusivity at the ABI, particularly regarding gender representation, it remains to be seen how this will be actively implemented. Mere statements about inclusivity may not suffice without specific measures to ensure equal opportunities for all genders within the arbitration profession.

3. Digital Integration: The emphasis on the digital dimension of ABI is noteworthy, but there is a need for more detailed information on how digital technology will be integrated into arbitration processes. Without a clear roadmap for digital innovation and technology adoption, the ABI may struggle to realize its potential in enhancing accessibility, efficiency, and transparency in dispute resolution.

4. Legislative Reforms: While there is recognition of the government's proactive stance in enacting legislative reforms to strengthen arbitration, the specific details of these reforms are not provided. Without a comprehensive understanding of the legislative changes and their implications, it may be challenging to assess their effectiveness in creating a conducive legal framework for arbitration.

5. International Reputation: The ambition to position India as a premier arbitration destination and a preferred seat for international arbitration is commendable. However, achieving global recognition requires more than just aspirations; it demands tangible efforts in building infrastructure, enhancing legal frameworks, and fostering international partnerships.

In summary, while the inauguration of ABI represents a positive development for India's arbitration ecosystem, there is a need for more concrete action plans, particularly in areas such as gender inclusivity, digital integration, legislative reforms, and international reputation building, to ensure its success and sustainability.

11. HEADING OUTLINE

Supreme Court Seeks Clarification From The Advocate-On-Record Regarding Advocate's Absence And Unprepared Proxy Counsel Appearance

CRUX OF THE CASE

SUPREME COURT SEEKS CLARIFICATION FROM THE ATTORNEY-ON-RECORD REGARDING ADVOCATE'S ABSENCE AND UNPREPARED PROXY COUNSEL APPEARANCE.

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Event Description	
Event	Special leave petition filed against the impugned judgment and order passed by the Allahabad High Court
Court	Supreme Court
Bench	J.K. Maheshwari and Sanjay Karol, JJ.
Proceedings	- Advocate-On-Record (AOR) absent - Proxy counsel appeared without brief, requested a short adjournment
Observation	- Court noted the absence of the AOR - Mentioned that the AOR, who filed the case, should be present with the brief of the case
Action Taken	- Notice issued to respondents, returnable in six weeks - Directed the AOR to appear and explain the reason for not taking care of the listed case

12. HEADING OUTLINE

PMLA Court denies former Jharkhand CM Hemant Soren bail in land scam case

CRUX OF THE CASE

PMLA COURT DENIES FORMER JHARKHAND CM HEMANT SOREN BAIL IN LAND SCAM CASE

Published on 13 May 2024 – By Adv. Himanshu Adhikari

Aspect	Details
Accused	Former Jharkhand Chief Minister Hemant Soren
Allegation	Illegally acquiring 8.86 acres of land in Ranchi with the help of State Government officials and others
Arrest	January 31, by the Enforcement Directorate (ED)
Detention	Birsa Munda Central Jail since February 1, 2024
Bail Application	Filed by Hemant Soren
Bail Decision	Refusal by the Special Court
Arguments	Hemant Soren claimed charges were politically motivated
	ED opposed bail citing lack of cooperation and influence during the investigation

Former Jharkhand Chief Minister Hemant Soren, accused in a Land Scam Case, filed a bail application in the PMLA Court. However, the Special Court denied his bail plea, citing concerns raised by the Enforcement Directorate (ED). Soren has been detained at Birsa Munda Central Jail since February 1, 2024. He argued that the charges against him were politically motivated, but the court deemed his release would not serve the cause of justice. The ED emphasized Soren's influence and lack of cooperation during the investigation as reasons against granting bail.

Source- Press

13. HEADING OUTLINE

"Supreme Court rejects plea to oust Arvind Kejriwal as Chief Minister of Delhi."

CRUX OF THE CASE**SUPREME COURT REJECTS PLEA TO OUST ARVIND KEJRIWAL AS CHIEF MINISTER OF DELHI**

Published on 13 May 2024 – By Adv. Himanshu Adhikari

Date	Court	Decision	Relevant Provisions/Articles
April 10	Delhi High Court	Dismissed a PIL with a cost of Rs. 50,000, deeming it a publicity stunt.	
	Supreme Court	Declined to intervene in a petition seeking Arvind Kejriwal's removal as Delhi CM,	
		following his arrest by the Enforcement Directorate in the Delhi liquor scam.	
		A writ of quo warranto was filed questioning Kejriwal's authority under Article 239-AA.	Article 239-AA
		The petitioner in the Supreme Court differed from the one in the High Court.	

14. HEADING OUTLINE